

Amended Initiating Application (Family Law)

Filed in:

- ☒ Federal Circuit and Family Court of Australia
☐ Family Court of Western Australia
☐ Other (specify): _____



Note: Initiating applications should be eFiled through the Commonwealth Courts Portal - www.comcourts.gov.au.

COURT USE ONLY

Client ID
File Number
Filed at NEWCASTLE
Filed on
Court location
Court date
Time
Type of hearing

IMPORTANT: Information for respondents to the application is on page 10.

Stephen Christopher COOKE
Applicant

Heather Anne COOKE
Respondent

Part A: The orders sought

1a. Type of orders sought (mark all boxes that apply)

- ☒ Parenting ☒ Financial (property and/or maintenance)
☐ Other (specify): _____

Note: You must complete and file a *Genuine Steps Certificate* with this application.

Filed on behalf of: The Applicant

Prepared by Jacqueline Turner

Lawyer's Code CLA7584701

Name of law firm Clarity Lawyers

Address for service in Australia T & G Building, Level 4, 45 Hunter Street, Newcastle

State NSW

Postcode 2300

Email j.turner@claritylawyers.com.au

Tel 0240235553

Attention Jacqueline Turner



2. Final orders sought

(State precisely and briefly the final orders sought by the applicant. Please give a number to each order sought.)

Property

1. That the Applicant further particularise his final property orders sought within 14 days of the Respondent providing full financial disclosure. ~~and interim orders being made with respect to parenting.~~

Parenting

2. See attached document marked "A".

3. Interlocutory orders sought

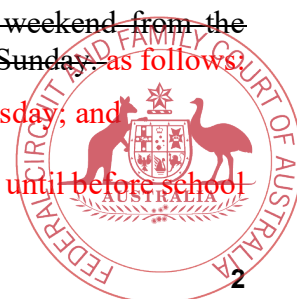
(These orders can only be sought in this form if you are seeking final orders as well; otherwise, leave blank. State precisely and briefly the orders sought. Please give a number to each order sought.)

If you seek interlocutory orders, you must file an affidavit which sets out the facts relied on in support of your application.

- ~~1. That this application for interim orders be heard urgently and that all times for service be abridged.~~

Parenting

2. That the Mother return Christian Finn Cooke, born 20 August 2014 (aged 9), and Joshua Finn Cooke, born 27th January 2017 (aged 7~~6~~) ("**the children**") to the care of the Father forthwith and that the children thereafter live with the Father.
- ~~3. That this recovery order made pursuant to Section 67U of the *Family Law Act 1975* (Cth) is addressed to the Marshal of the Court, all officers of the Australian Federal Police and all officers of the State and Territory police services.~~
- ~~4. That the persons to whom this recovery order is addressed are authorised and directed to find, recover and deliver the children, Christian Finn Cooke, born 20 August 2014 (aged 9), and Joshua Finn Cooke, born 27th January 2017 (aged 6) ("**the children**") to the Father, namely Stephen Christopher Cooke or a person nominated by him in writing, and for that purpose to stop and search any vehicle, vessel or aircraft and to enter and search any premises or place in which there is or was reasonable cause to believe that the children may be found.~~
- ~~5. That the Mother, her servants or agents, be and are hereby restrained from again removing or causing the removal of the children from the care of the Father, upon any breach of which injunction the persons to whom this recovery order is addressed are authorised and directed to arrest the Mother without a warrant.~~
6. This recovery order will remain in force for twelve (12) months.
7. That the children spend time with the Mother ~~thereafter on each alternate weekend from the conclusion of school on Friday (or 3.30pm on a non-school day) until 5pm on Sunday, as follows:~~
 - (a) in Week One, from after school on Wednesday to before school on Thursday; and
 - (b) in Week Two, from after school on Friday (or 3pm on a non-school day) until before school on Monday (or 9am on a non-school day).



8. That for the purposes of these Orders the School Holidays shall be deemed to:
 - (a) Commence at the conclusion of school on the last day of term (excluding pupil free days) for students at the school at which the child is enrolled and attending; and
 - (b) Conclude at 4:00pm NSW time on the day prior to the first day of the new school term (excluding pupil free days) for students at the school at which the child is enrolled and attending.
9. That during the School Holidays the care arrangements in Order 7 be suspended so that the children spend time during the school holidays with each parent as agreed and, in the absence of agreement, as follows:
 - (a) School Holidays following Terms 1, 2 and 3:
 - (i) With the Father for the first half of each of the school holiday periods in odd numbered years and the second half in even numbered years.
 - (b) School Holidays (including Christmas) following Term 4:
 - (i) In odd numbered years with the Mother from the day after school breaks up until 12 noon Christmas Day, then with the Father for two weeks being 14 nights, then with the Mother for two weeks being 14 nights and the balance with the Father;
 - (ii) In even numbered years with the Father from the day after school breaks up until 12 noon Christmas Day, then with the Mother for 14 nights, then with the Father for 14 nights and then the balance with the Mother.
 - (iii) For the purpose of this Order, the school holidays are deemed to commence at the conclusion of school on the last day of term, and changeovers shall occur at 12 noon.

Changeovers

10. For all changeovers not occurring at school, the parent (or nominee) whose time with the children is ending shall deliver the children to the home of the other parent (or nominee).
11. That the children have liberty to communicate with ~~the parent they are not spending time with mother~~ via telephone or video at their request and the parent they are spending time with ~~Father~~ shall facilitate such communication.
- ~~12. That the parties enrol in a post separation parenting course such as Parenting After Separation Course run by Parenting After Separation.~~
- ~~13. That the Mother enrol in Anger Management course run by Parenting After Separation.~~
14. That there be a restraint upon the Mother from consuming alcohol while the children are in her care ~~of~~ for the 12 hours prior to them coming into her care.
15. That the Mother pay the Father's costs of and incidental to this application fixed in the sum of \$5,000.



Property

16. That the Applicant have sole use and occupancy of the property 213 Morgan Street Merewether (“the FMH”).
17. That the Respondent continue to pay when they fall due all costs and expenses associated with the FMH including but not limited to mortgage and loan repayments, strata levies, utilities, rates and insurance.
18. That the Applicant have use of the 2015 Honda CR-V VTi-L (Registration Number DAI47C) and that the Respondent continue to pay as and when they fall due all costs and expenses associated with this car including registration and insurance.
19. That the Respondent pay by way of spousal maintenance the sum of \$1,457 per week into an account nominated by the Applicant.
20. That within seven (7) days of the date of these Orders the Respondent return the following sums to the following accounts and that the parties thereafter take steps to ensure that both must agree to any further withdrawals:
 - (a) ~~\$29,750~~ **\$38,470.58** from account ending *2594;
 - (b) ~~\$173,000~~ **\$178,201.51** from account ending *5063; and
 - (c) ~~\$166,037~~ **\$163,967** from account ending *7778;
 - (d) **\$6,401.93** from account ending *7671; and
 - (e) **\$4,854.23** from account ending *5055.
21. That within 14 days the parties take all steps necessary to release the sum of \$50,000 from account ending *5063 to the trust account of the Applicant’s solicitors by way of interim litigation funding. Save that should the Respondent not return the funds as per the previous order the amount of \$50,000 be paid by the Respondent to the trust account of the Applicant’s solicitors.

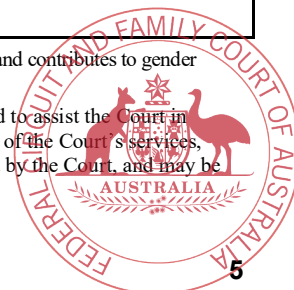


Part B: Details of the parties**Details of Applicant/s**

	Applicant 1	Applicant 2
4. Family name as used now	Cooke	
5. Given names	Stephen Christopher	
6. Gender[^]	☐ Choose not to answer ☒ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)	☐ Choose not to answer ☐ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)
7a. Residential address (incl postcode)	213 Morgan Street, Merewether NSW 2291	
7b. Email address	stephencooke.c@gmail.com	
8. Phone number (home and mobile)	0412 846 712	
	You do not have to state your residential address, email address or telephone number if it is not safe to do so. You can repeat your contact address for service if you wish.	
9. Date of birth (day / month / year)	27/10/1981	/ /
10. Usual occupation		
11. Mark box as applicable for each applicant	☒ Present in Australia ☒ Ordinarily resident in Australia ☒ An Australian citizen ☒ Domiciled in Australia	☐ Present in Australia ☐ Ordinarily resident in Australia ☐ An Australian citizen ☐ Domiciled in Australia
12. Description	☒ Party to a marriage ☐ Party to a de facto relationship that has broken down ☒ Parent ☐ Grandparent ☐ Other (specify):	☐ Party to a marriage ☐ Party to a de facto relationship that has broken down ☐ Parent ☐ Grandparent ☐ Other (specify):
13. Is an interpreter required?	☒ No ☐ Yes. If Yes, state language & dialect:	☐ No ☐ Yes. If Yes, state language & dialect:
14. Is the applicant of Aboriginal and/or of Torres Strait Islander origin? ~	☒ No ☐ Yes Aboriginal ☐ Yes Torres Strait Islander ☐ Yes Aboriginal and Torres Strait Islander	☐ No ☐ Yes Aboriginal ☐ Yes Torres Strait Islander ☐ Yes Aboriginal and Torres Strait Islander

[^] You are not required to answer this question. The information assists to understand the diversity of family relationships in Australia and contributes to gender disaggregated data. The courts' privacy policies can be found on www.fcfcoa.gov.au

~ You are not required to answer this question, but it will greatly assist the Court if you do. The information sought is being collected to assist the Court in planning and delivering client services. It is possible that you may be contacted to participate in a review of a particular aspect of the Court's services, although your right not to participate will be respected. The information you provide may be shared with researchers approved by the Court, and may be included in publications in statistical form in a way that does not identify you.



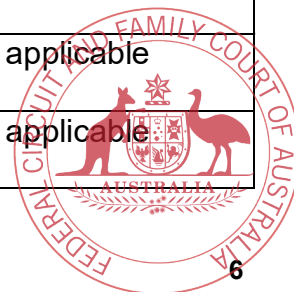
Details of Respondent/s

	Respondent 1	Respondent 2
15. Family name as used now	Cooke	
16. Given names	Heather Anne	
17. Gender[^]	☐ Choose not to answer ☐ M (male) ☒ F (female) ☐ X (indeterminate/intersex/unspecified)	☐ Choose not to answer ☐ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)
18a. Residential address (incl postcode)	213 Morgan Street, Merewether NSW 2291	
18b. Email address	heather111finn@gmail.com	
19. Date of birth (day / month / year)	31/07/1978	/ /
20. Usual occupation	Cardiologist	
21. Mark box as applicable for each respondent	☒ Present in Australia ☒ Ordinarily resident in Australia ☒ An Australian citizen ☒ Domiciled in Australia	☐ Present in Australia ☐ Ordinarily resident in Australia ☐ An Australian citizen ☐ Domiciled in Australia
22. Description	☒ Party to a marriage ☐ Party to a de facto relationship that has broken down ☒ Parent ☐ Grandparent ☐ Other (specify):	☐ Party to a marriage ☐ Party to a de facto relationship that has broken down ☐ Parent ☐ Grandparent ☐ Other (specify):
23. Is an interpreter required?	☒ No ☐ Yes. If Yes, state language & dialect:	☐ No ☐ Yes. If Yes, state language & dialect:
24. Is the respondent of Aboriginal and/or of Torres Strait Islander origin? ~	☒ No ☐ Yes Aboriginal ☐ Yes Torres Strait Islander ☐ Yes Aboriginal and Torres Strait Islander	☐ No ☐ Yes Aboriginal ☐ Yes Torres Strait Islander ☐ Yes Aboriginal and Torres Strait Islander

For ^ and ~ details, see page 3.

Part C: Relationship of parties

25. Date parties commenced living together (day / month / year)	24 September 2011	or ☐ Not applicable
26. Date of marriage (day / month / year)	26/09/2014	or ☐ Not applicable
27. Date of final separation (day / month / year)	17/11/2023	or ☐ Not applicable
28. Date of divorce (day / month / year)		or ☒ Not applicable



Part D: Children

(Complete details for each child. If more space is required for extra children, attach an extra page)

	Child 1	Child 2
29. Family name	Cooke	Cooke
30. Given names	Joshua Finn	Christian Finn
31. Date of birth (day / month / year)	27/01/2017	20/08/2014
32. Gender^	☐ Choose not to answer ☒ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)	☐ Choose not to answer ☒ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)
33. Parent 1 family name	Cooke	Cooke
34. Parent 1 given names	Stephen Christopher	Stephen Christopher
35. Parent 2 family name	Cooke	Cooke
36. Parent 2 given names	Heather Anne	Heather Anne
37. With whom does the child live?	Both	Both

	Child 3	Child 4
38. Family name		
39. Given names		
40. Date of birth (day / month / year)		
41. Gender^	☐ Choose not to answer ☐ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)	☐ Choose not to answer ☐ M (male) ☐ F (female) ☐ X (indeterminate/intersex/unspecified)
42. Parent 1 family name	_____	_____
43. Parent 1 given names	_____	_____
44. Parent 2 family name	_____	_____
45. Parent 2 given names	_____	_____
46. With whom does the child live?		

For ^ details, see page 3.



Part E: For applications for parenting orders

47. Has the applicant obtained a certificate from a registered family dispute resolution practitioner? (Refer to section 60I of the *Family Law Act 1975*).

☒ No ☐ Yes

If yes, attach a copy of the certificate to this application and go to Part F of this form.

If no, to obtain an exemption from filing a certificate you must either complete and file the form *Affidavit – Non-Filing of Family Dispute Resolution Certificate* or include the factual basis for the exemption in the affidavit you file in support of any order you are seeking.

48. Has the applicant received advice from a family counsellor or a family dispute resolution practitioner about the services and options (including alternatives to court action) available in circumstances of abuse or violence? (Refer to section 60J of the *Family Law Act 1975*).

☒ No ☐ Yes

Part F: Other court cases and orders

Ongoing cases

49a. Are there any ongoing cases in this or any other court about family law, child support, family violence or abuse in relation to a child, or child welfare issues that involve any of the parties or children listed in this application?

☒ No ☐ Yes

If yes, provide the following details for each ongoing case. (Attach extra pages as required.)

49b. Court name and place

49c. Next Court date

/ /

49d. Names of parties

49e. State the nature of the orders sought (eg property settlement, parenting orders, child support)

Existing orders, agreements or undertakings

50a. Are there any existing orders, agreements, parenting plans or undertakings to a court about family law, child support, family violence or abuse in relation to a child (including family violence orders which have applied to a child or a member of the child's family), or child welfare issues concerning any of the parties or children listed in this application?

☒ No ☐ Yes

If yes, either **attach copies** of any orders, agreements, parenting plans or undertakings or provide details below.

(If there is more than one order etc, attach extra pages as required.)

50b. Court name and place

50c. Date

/ /

50d. Names of parties to the order, agreement, parenting plan or undertaking



Part G: For property and/or spouse/de facto partner maintenance applications

If the parties were in a de facto relationship that has broken down, complete Part H

51. Have the parties entered into a financial agreement or a part VIIIAB Financial Agreement under the *Family Law Act 1975* or under any relevant state or territory legislation?

☒ No ☐ Yes

52. If either party has a superannuation interest, have the parties entered into a binding superannuation agreement in relation to that superannuation interest?

☒ No ☐ Yes

53. Is any party currently bankrupt or currently a debtor in bankruptcy proceedings started by either a creditor's petition or a debtor's petition or currently a debtor subject to a personal insolvency agreement?

☒ No ☐ Yes

54. Is there a proceeds of crime order or current forfeiture application in relation to any of the property of any of the parties?

☒ No ☐ Yes
If yes, attach a sealed copy of the order or application.

Part H: ~~De facto relationship jurisdiction—financial causes~~

(subsection 4(1) of the *Family Law Act 1975* defines de facto financial cause)

Complete ~~all~~ the boxes below if relying on the Court's jurisdiction to make orders for the benefit of a party to de facto relationship that has broken down.

~~Entitlement to apply and geographic requirements~~

55a. Did your de facto relationship break down on or after 1 March 2009 or if resident in South Australia on or after 1 July 2010? (See important notes for completing Part H)

☐ No ☐ Yes

55b. Is the period or the total of the periods of the de facto relationship at least two years?

☐ No ☐ Yes

55c. Is there is a child of the de facto relationship?

☐ No ☐ Yes

55d. Has the applicant made substantial contributions and a failure to make an order or declaration would result in serious injustice to the applicant?

☐ No ☐ Yes



~~55e. Is, or was, the relationship registered under a prescribed law of a state or territory of Australia?~~

☐	No	☐	Yes
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~~55f. Were both parties to the relationship ordinarily resident in one or more of the Australian territories or New South Wales, Queensland, Victoria, Tasmania or South Australia for at least one third of the domestic relationship, or at the date the relationship broke down?~~

☐	No	☐	Yes
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~~55g. Did the applicant make substantial contributions in one or more of the Australian territories or New South Wales, Queensland, Victoria, Tasmania or South Australia?~~

☐	No	☐	Yes
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Part I: ~~Cross-vested jurisdiction~~

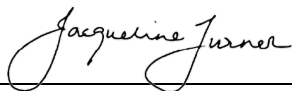
~~(Complete only if relying on cross-vested jurisdiction. Note: An affidavit **must** be filed – see rule 9.10 of the Rules)~~

~~56. If relying on a cross-vesting law, specify the Territory law relied on~~

Part J: Lawyer's declaration

57. If the applicant is filing this application without a lawyer, this part need not be completed. However the applicant should obtain a copy of the information brochure *Marriage, Families and Separation* from the Court when filing the application. If a lawyer is filing the application, then the lawyer must give the applicant a copy of the brochure and sign the following declaration.

I gave the applicant(s) a copy of the Court's brochure *Marriage, Families and Separation*.



Signature of lawyer

Full name of lawyer: Jacqueline Turner

Date: 2 / 4 / 2024



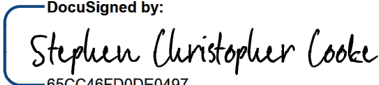
Part K: Statement of Truth of the contents of this document

58. Applicant 1	Applicant 2
1. The facts of which I have personal knowledge are true. 2. All other facts are true to the best of my knowledge, information and belief and the orders sought in this application are supported by evidence. 3. I am aware that I have a duty to the Court and to each other party to give full and frank disclosure – in a timely manner – of all information relevant to the issues in the case. 4. I have read and complied with the pre-action procedures required of me as outlined in Schedule 1 of the Rules, and completed a <i>Genuine Steps Certificate</i>.	1. The facts of which I have personal knowledge are true. 2. All other facts are true to the best of my knowledge, information and belief and the orders sought in this application are supported by evidence. 3. I am aware that I have a duty to the Court and to each other party to give full and frank disclosure – in a timely manner – of all information relevant to the issues in the case. 4. I have read and complied with the pre-action procedures required of me as outlined in Schedule 1 of the Rules, and completed a <i>Genuine Steps Certificate</i>.

I have read and understood this Statement of Truth (please tick)

I have read and understood this Statement of Truth (please tick)

DocuSigned by:



65CC46FD0DE0497...

☒ **Signature of Applicant 1**

2/4/2024

Date: / /2024

☐ **Signature of Applicant 2**

Date: / /

This document was signed and witnessed over audio visual link in accordance with section 14G of the Electronic Transactions Act 2000.



IMPORTANT NOTICE TO RESPONDENT(S)

You should seek legal advice about this application.

If you do not want the Court to make the orders sought in this application or if you want the Court to make other orders, **YOU MUST:**

File with the Court:

- **If seeking parenting orders:**
 - a *Response to Initiating Application*;
 - a *Notice of child abuse, family violence or risk*;
 - a *Genuine Steps Certificate*;
 - a *Questionnaire – Parenting*; and
 - other documents as required, depending on the orders you seek (see the relevant Practice Direction for each type of proceedings commenced by the applicant).
- **If seeking financial orders:**
 - a *Response to Initiating Application*;
 - a *Financial Statement*;
 - a *Genuine Steps Certificate*;
 - a *Questionnaire – Financial*; and
 - other documents as required, depending on the orders you seek (see the relevant Practice Direction for each type of proceedings commenced by the applicant).

These forms are available on the Court's website www.fcfcoa.gov.au

- You must also file an affidavit if:
 - interlocutory orders are sought by either party, or
 - an allegation is made in the *Notice of child abuse, family violence or risk*, or
 - if required by the Rules or relevant Practice Direction.

An affidavit form is available on the Court's website www.fcfcoa.gov.au.

You must also serve copies of the documents filed on all other parties.

Attending the hearing

Your hearing may be **in person**, by **telephone** or **electronic web conference** eg. *Microsoft Teams*.

Please file a *Notice of Address for Service* **as soon as possible** so the Court can provide instructions on how to attend your hearing. Please refer to the Court website for further information on attending hearings.

Please note: if you do not attend the hearing, orders may be made in your absence.



“A”

FINAL ORDERS SOUGHT BY THE APPLICANT FATHER

Parental Responsibility

1. That the parties have equal shared parental responsibility for Christian Finn Cooke, born 20 August 2014 (aged 9), and Joshua Finn Cooke, born 27 January 2017 (aged 6) (“**the children**”).

Live With

2. That the children shall live with the Father.

Spend Time With

3. That the children shall spend time with the Mother as agreed and failing agreement as follows:
 - (a) in Week One, from after school on Wednesday to before school on Thursday; and
 - (b) in Week Two, from after school on Friday (or 3pm on a non-school day) until before school on Monday (or 9am on a non-school day).

School Holidays

4. That for the purposes of these Orders the School Holidays shall be deemed to:
 - (a) Commence at the conclusion of school on the last day of term (excluding pupil free days) for students at the school at which the child is enrolled and attending; and
 - (b) Conclude at 4:00pm NSW time on the day prior to the first day of the new school term (excluding pupil free days) for students at the school at which the child is enrolled and attending.
5. That during the School Holidays the care arrangements in Order 3 be suspended so that the children spend time during the school holidays with each parent as follows:
 - (a) School Holidays following Terms 1, 2 and 3:
 - (i) As agreed between the parties and in the absence of agreement, with the Father for the first half of each of the school holiday periods in odd numbered years and the second half in even numbered years.
 - (b) School Holidays (including Christmas) following Term 4:
 - (i) In odd numbered years with the Mother from the day after school breaks up until 12 noon Christmas Day, then with the Father for two weeks being 14 nights, then with the Mother for two weeks being 14 nights and the balance with the Father;



- (ii) In even numbered years with the Father from the day after school breaks up until 12 noon Christmas Day, then with the Mother for 14 nights, then with the Father for 14 nights and then the balance with the Mother.
- (iii) That for the purpose of this Order, the school holidays are deemed to commence at the conclusion of school on the last day of term, and changeovers shall occur at 12 noon.

Easter

Notwithstanding any other Orders, the children shall spend time with the Mother from 5 pm on Easter Thursday until 5 pm on Easter Monday commencing in 20## and in each alternate year thereafter.

Father's Day

- 6. Notwithstanding any other Orders, the children spend time with the Father on Father's Day in each year from 9.00am to 5.00pm.

Mother's Day

- 7. Notwithstanding any other Orders, the children spend time with the Mother on Mother's Day in each year from 9.00am to 5.00pm.

Changeovers

- 8. For all changeovers not occurring at school, the parent (or nominee) whose time with the children is ending shall deliver the children to the home of the other parent (or nominee).

Communication

- 9. That the Mother and Father are permitted to have liberal telephone and Facetime communication with the children with such communication to be at minimum on Monday and Saturday at 7pm to 7:30pm by way of FaceTime with the non-contact parent to initiate the call.
- 10. The Mother and Father shall allow the children access to a telephone at all reasonable times to enable them to telephone/FaceTime the other parent.
- 11. That the parties shall communicate via email or text message, unless in the need of an emergency, in which case communication shall occur via telephone.

Alcohol

- 12. Neither parent is allowed to excessively consume alcohol within 12 hours before spending time with the children or during any period of time with the children.

International Travel

- 13. Pursuant to Section 65Y(2)(b) of the Family Law Act 1975 (Cth), each party be at liberty to take the children from Australia to a place outside of Australia during the time that the children are



living with or spending time with them, or for such other period as agreed between the parties from time to time in writing, provided that:

- (a) The children are not taken to a country or jurisdiction that:
 - (i) Is not a Convention country listed in Schedule 2 of the Family Law (Child Abduction Convention) Regulations 1986; and
 - (ii) Has been classified by the Department of Foreign Affairs and Trade as 'Level 2 - Exercise a high degree of caution' or equivalent or higher at the date of departure;
 - (b) The travelling party provides to the other:
 - (i) Not less than two (2) weeks prior to the intended departure date, written notice of his or her intention to travel;
 - (c) Not less than two (2) weeks prior to the departure date, a detailed itinerary of the proposed travel, including details of departure and return dates, each destination, flight numbers, methods of travel, where the children will be staying, copies of documents sufficient to demonstrate that the children and the travelling party each have a paid return ticket; and
 - (d) Not less than two (2) weeks prior to departure, copies of certificates of travel insurance which include medical cover for the children and the travelling party and which cover the children and the travelling party for each relevant destination and duration of travel.
14. The travelling party ensures that the children are fully vaccinated as recommended by the children's treating general medical practitioner for each travel destination.

Passports

15. That, if requested by the other party, the parties must make sure that the children have valid Australian Passports. To make sure this occurs:
- (a) The Father must give the completed application to the Mother;
 - (b) The Mother must sign and return the application to the Father within 14 days of receiving it;
 - (c) The Father must immediately lodge the completed passport application;
 - (d) The Father is to have the children's passport when they are not travelling overseas with the Mother; and
 - (e) The Father, if requested by the Mother in writing, must give the passport to the Mother at least 6 weeks prior to any proposed travel with the children and the Mother must return the passport to the Father upon their return.



Long Term Communication Between Parties

16. That the parties:

- (a) keep the other advised at all times of their current residential address and mobile telephone numbers;
- (b) advise the other immediately in the event that one or both of the children suffers any serious illness or injury including details as to any medical practitioner, hospital or medical practice attended;
- (c) authorise any medical practitioner, hospital or medical practice upon or at which either child may attend from time to time, to communicate with the other party in respect to the child's medical condition and/or requirements;
- (d) authorise all schools at which the children may attend from time to time, to:
 - (i) provide the other, at the expense of the other, copies of all school reports, school notices and newsletters, school photographs and examples of school work in relation to the children;
 - (ii) communicate with the other, either by telephone, in writing or by personal attendance, in respect to the children's progress at school, and inform each other of any emergency, remedial or correctional treatment required by the children as soon as is practicable; and
 - (iii) permit the other to attend all school functions to which parents are normally invited; subject to any school policy in relation thereto.

Attendance at Activities

17. That each party is entitled to attend all school and extra-curricular activities involving the children, including:

- (a) sporting fixtures;
- (b) extra-curricular activities that allow for parental attendance;
- (c) school functions and events that allow for parent attendance including but not limited to concerts, school assemblies, sports days, parent and teacher interviews and canteen duties.

Interpretation of Orders

18. In the event that there is a dispute about the interpretation, implementation or enforcement of these Orders, the parties, before making any further application to a Court shall:

- (a) Attend counselling or mediation with an organisation recognised under the Family Law Act 1975 (Cth) or by the Commonwealth Attorney-General; or



- (b) Participate in family dispute resolution with a Family Relationship Centre or a person authorised under section 10G of the Family Law Act 1975 (Cth).

Discipline

19. Neither parent is permitted to use physical discipline, nor will they allow a third party to do so.

Non-Denigration

20. Each party is restrained from making negative, derogatory or disparaging comments about the other parent or members of the other parent's family or household in the presence or hearing of the children.

